

UNITED STATES COURT OF APPEALS FOR THE FEDERAL CIRCUIT

BILL OF COSTS

Case Number: _____

Short Case Caption: _____

Party Requesting Costs:	
The Clerk is requested to tax the following costs against the following party or parties:	

Stipulated Costs	☐ The parties have stipulated to the below total costs requested.
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ITEMIZED COSTS					
Cost Type	Number of Copies	Number of Pages	Actual Cost (Page/Copy)	Allowable Cost*	Total Cost
Brief			\$	\$0.08/page	\$
Reply Brief			\$	\$0.08/page	\$
Appendix			\$	\$0.08/page	\$
Binding and Covers			\$	\$2.00/copy	\$
Docketing Fee (if paid in this court by appellant or petitioner only)				\$600.00	\$
TOTAL COSTS REQUESTED:					\$

*Only use Allowable Costs amount for calculating the total cost when the Allowable Cost amount is less than the Actual Cost per page/copy.

I declare under penalty of perjury that (1) the foregoing costs are correct and were necessarily and actually incurred in this matter and (2) any attached itemized statements of the costs incurred or invoices are true and accurate.

Date: _____ Signature: _____

Name: _____

Save for Filing

INSTRUCTIONS FOR FILING A BILL OF COSTS

A request for costs must be submitted on this form and received by the Clerk within 14 days of judgment. Any objection to the bill of cost must be filed within 14 days from the date of service of the bill of costs, unless the court extends the time. Absent objection, allowable costs will be taxed as billed. *See* Fed. Cir. R. 39(b).

The court has set the following maximum number of copies and rates. Absent a motion, only the following docketing fee and costs related to preparing briefs and appendices are taxable by this court.

Maximum Allowable Costs	
Docketing Fee	\$600.00
Copying	\$0.08 (per page)
Binding and Covers	\$2.00 (per copy)

Guidelines

1. **Stipulated Costs:** If costs are stipulated, check the corresponding box and enter the amount in TOTAL COSTS REQUESTED. Do not complete the itemized section.
2. **Limitations on Taxable Amounts:** Absent leave of court, parties may not request more than the maximum allowable costs or for more paper copies than those required by Fed. Cir. R. 25(c)(3), Fed. Cir. R. 30(a)(3), and Fed. Cir. R. 31(b). *See* Fed. Cir. R. 39(c)-(d).

Cost Type	Explanation
Docketing Fee	Parties may only claim the \$600 docketing fee paid to the Federal Circuit. Docketing fees paid to other courts must be claimed in those courts.
Copies of Briefs and Appendices	If the actual cost of copying briefs and appendices is less than \$0.08 per page, parties may only be able to claim the lesser amount. <i>Illustration.</i> If a party prints 7 copies of the reply brief, each brief has 40 pages, and the actual cost to print the reply brief was \$0.05 per page, the party may only claim \$14.00 for the reply brief (7 copies x 40 pages x \$0.05 = \$14.00), not \$22.40 using the \$0.08 rate.
Binding and Covers for Briefs and Appendices	If the actual cost of binding and covers is less than \$2.00 per copy, parties may only claim the lesser amount. <i>Illustration.</i> If a party prints 7 copies of the opening brief, 7 copies of the reply brief, and 7 copies of a 2-volume appendix, and the actual cost to bind and cover was \$1.00 per copy, the party may only claim \$28.00 for binding and covers (7 opening briefs + 7 reply briefs + 7 2-volume appendices [14 total copies] x \$1.00 = \$28.00).